

26PR00265 Conservatorship of Joshua Jeffries

County: santa-barbara

Division: Conservatorship

Department: 4 SM-Cook

Hearing date: 2026-07-27

Motion: Petition to Appoint Limited Conservator

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Tentative Ruling: Conservatorship of Joshua Jeffries

Case Number

26PR00265

Case Type

Conservatorship

Hearing Date / Time

Mon, 07/27/2026 - 08:30

Nature of Proceedings

Petition to Appoint Limited Conservator

Tentative Ruling

Probate Notes:

Appearances required. The following defects must be corrected before the hearing:

Confidential Declaration on Medical Ability to Attend Hearing (GC-325) – As of January 1, 2025, the ability of the proposed conservatee to attend the hearing will be determined on evidence submitted on Judicial Counsel form GC-325. This form was adopted for mandatory use as of January 1, 2025. This form must be filed, or the proposed conservatee will be expected to attend the hearing.

Properly Executed Capacity Declaration. The Confidential Capacity Assessment and Declaration was executed by what appears to be a nurse practitioner.

No order adjudging that conservatee lacks capacity to give informed consent to medical treatment may be granted unless supported by a declaration executed by a licensed physician or licensed psychologist supporting the request. (Prob. Code, § 1890(c).) The Court does not read the terms "Physician" or "Psychologist" so broad as to include Nurse Practitioners or Physician's Assistants, thus cannot hold either can properly execute the Capacity Declaration without a licensed Physician or Psychologist's accompanying signature.

Petitioner must present Judicial Council form GC-335 to a licensed California Physician or Psychologist for signature, and file the completed form with the court.

Regional Center Report. When the proposed conservatee is a person with developmental disabilities, a report from the appropriate regional center is required (in this geographical area, the regional center is Tri-Counties). (Prob. C. § 1827.5.)

Proposed Order Appointing Conservator (GC-340). "Proposed orders or judgments shall be submitted on or before noon at least five court days prior to the hearing. Failure to submit a timely proposed order may delay the hearing or entry of the order." (Local Rule 1724.)

Proposed Letters of Conservatorship (GC-350). "Proposed orders or judgments shall be submitted on or before noon at least five court days prior to the hearing. Failure to submit a timely proposed order may delay the hearing or entry of the order." (Local Rule 1724.)

The proposed conservatee is not expected to attend the hearing. (Prob. Code, § 1825.) (Prob. Code, § 1825(a)(2)[medical inability].)

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

312-C East Cook Street P.O. Box 5369

Santa Maria, CA 93456-5369

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